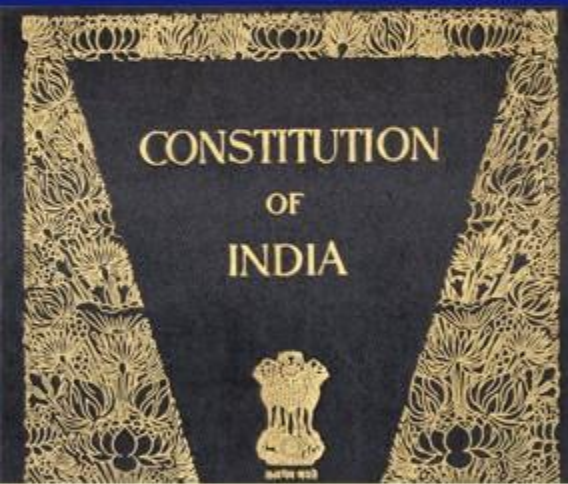


INDIAN POLITY



MODULE - 6

**INDIAN COUNCILS ACT
OF 1909**

INDIAN COUNCILS ACT OF 1909

This Act is also known as the Morley-Minto reforms. It was made by Lord Morley (The then Secretary of State for India) and Lord Minto (the then Viceroy)



LORD MINTO



LORD MORLEY

INDIAN COUNCILS ACT OF 1909

BACKGROUND OF THE ACT

- 1 Though the Indian Councils act of 1892 had introduced limited **representations** with indirect elections, it failed to pacify the Indians who were much conscious of their rights now.



- 2 There was a lot of **resentment** against **Lord Curzon** with his idea of partition of Bengal.
- 3 Congress **witnessed the rise of extremism** within itself and this also led to the split of Congress party.
- 4 The Government on one hand wanted to suppress the extremist, but on the other hand wanted to pacify the moderates.
- 5 This idea culminated in the Indian Councils Act of 1909.

INDIAN COUNCILS ACT OF 1909

FEATURES OF THE ACT

1 It considerably **increased the size of the Legislative councils** both the Central and Provincial. The number of members in the Central legislative council was raised from 16 to 60



2 For the first time, this Act gave recognition to the idea of communal representation i.e. it introduced a **system of separate electorates**.

3 Under this the Muslim members were to be elected only by Muslim voters, separate constituencies were marked for the Muslims and only Muslim community members were given the right to elect the representatives.

INDIAN COUNCILS ACT OF 1909

MORE ON SEPARATE ELECTORATES



Partition of India

- *The separate electorates for Muslims had a long lasting impact on India's polity.*
- *It recognized the Muslim community as a separate section of India.*
- *This Act legalized Communalism and Lord Minto came to be known as the Father of Communal Electorate.*
- *This Act triggered the "cancer" of Hindu-Muslim disharmony, which ultimately culminated in the partition of India*

INDIAN COUNCILS ACT OF 1909

FEATURES OF THE ACT

- 4** This Act retained the **official majority** in the **Central Legislative Council**, but allowed the provincial legislative councils to have non-official majority.



Satyendra Prasad Sinha became the first Indian to join the Viceroy's Executive Council

- 5** The Act empowered the members to **discuss the budget and move resolutions on the budget**. They were given rights to ask supplementary questions.

- 6** It provided for the **first time for the association of Indians with executive councils** of the Viceroy and Governors.

- 7** It also provided for the separate representations of presidency corporations, chambers of commerce, universities and zamindars.

INDIAN COUNCILS ACT OF 1909

ANALYSIS OF THE ACT



Autocracy

- 1 The people of India demanded for responsible Government but what they ultimately got was **Benevolent Despotism**
- 2 The size of the provincial legislative councils were enlarged, **but the official majority was maintained.**
- 3 The **position of the Governor General remained unchanged and his veto power remained undiluted** and this Act successfully maintained Constitutional Autocracy.

INDIAN COUNCILS ACT OF 1909

WHAT DO YOU UNDERSTAND BY THE TERM “BENEVOLENT DESPOTISM”?



NAPOLEAN BONAPARTE

- *The Benevolent Despotism, also called as Enlightened despotism, is a form of government in the 18th century in which absolute monarchs pursued legal, social, and educational reforms inspired by the Age of Enlightenment (The intellectual and philosophical movement that dominated the world of ideas in Europe during the 18th century).*
- *They typically instituted administrative reform, religious toleration, and economic development but did not propose any reforms that would undermine their sovereignty or disrupt the social order.*

INDIAN COUNCILS ACT OF 1909

ANALYSIS OF THE ACT

- 5 There was narrow franchises for elections and there were limited powers for the legislative council and this assured a complete irresponsible Government.
- 6 The Act added a new political problem with the introduction of the separate electorate system. It sowed the seeds of Separatism
- 7 Nevertheless, the Morley-Minto reforms marked an important stage in the growth of representative institutions in our country. The Legislative members also got an opportunities to criticise the executives and make suggestions for better administration.
- 8 The enlargement of legislatures furthered the demand of complete Indianization of Legislature.

UPSC PRELIMS 1999

Consider the following statements about Indian Council Acts, 1909

1. It provided separate electorates for Muslims, Sikhs, Indian Christians and Anglo-Indians.
2. It introduced direct elections in the country for the first time.

Which of the above is / are correct?

- | | |
|---------------|--------------------|
| a) 1 only | b) 2 only |
| c) Both 1 & 2 | d) Neither 1 nor 2 |

Answer: D

UPSC PRELIMS 1999

The most short-lived of all of Britain's constitutional experiments in India was the

- a) Indian Councils Act of 1861
- b) Indian Councils Act of 1892
- c) Indian Councils Act of 1909
- d) Government of India Act of 1919

Answer: C

UPSC PRELIMS 2002

Which one of the following Acts of British India strengthened the Viceroy's authority over his executive council by substituting "portfolio" or departmental system for corporate functioning?

- a) Indian Councils Act of 1861
- b) Government of India Act of 1858
- c) Indian Councils Act of 1892
- d) Indian Councils Act of 1909

Answer: A

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